

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
SEPTEMBER 09, 2026
8:30 a.m.

2. COLLEEN SIDEY V. BRYAN YERIAN

22FL0437

This matter is before the court for hearing of two separate Requests for Order (RFO). The first RFO was filed by the Respondent on July 28, 2026, to modify child support. The second RFO was filed by the Petitioner on August 24, 2026, to require Respondent to provide necessary documents to prepare the Qualified Domestic Relations Order (QDRO).

Respondent's RFO Filed July 28, 2026

Respondent concurrently filed with his RFO a current Income and Expense Declaration (I&E). Proof of service filed September 02, 2026, shows the RFO and I&E were electronically served upon Petitioner on July 28, 2026.

On August 24, 2026, Petitioner filed a Responsive Declaration and I&E, copies of which were electronically served upon Respondent that same day per the proof of service, also filed August 24, 2026.

Respondent has a zero percent custody timeshare of the minor child. As of December 31, 2025, he has been unemployed. However, as Petitioner points out in her Responsive Declaration, Respondent received a \$95,000 severance payment. Respondent's I&E does not indicate how much he earned at his most recent job. Without additional information, the court finds that Respondent's current gross monthly income is \$7,917 ($\$95,000 / 12 \text{ months} = \$7,916.66$, the court rounds up to the nearest dollar).

Petitioner declares her current gross monthly income is \$4,100. As shown in the attachment to her I&E submitted August 24, 2026, she earned \$4,293.75 the previous month. Petitioner also declares she has a monthly expense of \$51.00 (rounded up to the nearest dollar from \$50.49) for health insurance.

As shown in the attached XSpouse calculation printout, Respondent is ordered to pay Child Support to the Petitioner in the amount of \$1,458.00 beginning August 01, 2026, and the first of each month thereafter until further order of the court.

Petitioner's RFO Filed August 24, 2026

Petitioner's RFO included a request for order shortening time. On August 24, 2026, the court granted the request, ordering Petitioner to serve the RFO on or before August 28, 2026, and ordering Respondent to file and serve a Responsive Declaration on or before September 02, 2026. To date, there is no proof of service of the RFO in the court's file. Due to the lack of service, the matter is dropped from the calendar.

TENTATIVE RULING #2:

RESPONDENT'S RFO FILED JULY 28, 2026: THE RFO IS GRANTED. RESPONDENT IS ORDERED TO PAY CHILD SUPPORT TO THE PETITIONER IN THE AMOUNT OF

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\$1,458.00 BEGINNING AUGUST 01, 2026, AND THE FIRST OF EACH MONTH THEREAFTER UNTIL FURTHER ORDER OF THE COURT.

PETITIONER'S RFO FILED AUGUST 24, 2026: DUE TO THE LACK OF SERVICE, MATTER IS DROPPED FROM THE CALENDAR.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.

Fixed Shares	Father	Mother	Monthly figures	Cash Flow	Guideline	Proposed
#of children	0	1	2026			
% time with NCP	0.00 %	0.00 %				
Filing status	SINGLE	HH/MLA	GUIDELINE	Comb. net spendable	9507	9528
# exemptions	1 *	2 *	Nets(adjusted)	Percent change	0%	0%
Wages+salary	7917	4100	Father	Father		
Self-employed income	0	0	Mother	Payment cost/benefit	-1886	-1838
Other taxable income	0	0	Total	Net spendable income	3946	3994
TANF+CS received	0	0	Support	Change from guideline	0	48
Other nontaxable income	0	0	Addons	% of combined spendable	42%	42%
New spouse income	0	0	Guideln CS	% of saving over guideline	0%	233%
401(k) employee contrib	0	0	Alameda SS	Total taxes	2086	1862
Adjustments to income	0	0	Total	Dep. exemption value	0	0
SS paid prev marriage	0	0	-	# withholding allowances	0	0
CS paid prev marriage	0	0		Net wage paycheck	5610	5610
Health insurance	0	51		Mother		
Other medical expense	0	0		Payment cost/benefit	1886	1858
Property tax expense	0	0		Net spendable income	5562	5534
Ded interest expense	0	0	Proposed	Change from guideline	0	-28
Charitable contributions	0	0	Tactic 9	% of combined spendable	58%	58%
Misc tax deductions	0	0	CS	% of saving over guideline	0%	-133%
Qual bus income ded	0	0	SS	Total taxes	373	577
Required union dues	0	0	Total	Dep. exemption value	0	0
Mandatory retirement	0	0		# withholding allowances	0	0
Hardship deduction	0 *	0 *	Saving	Net wage paycheck	3377	3377
Other GDL deductions	0	0	Releases			
Child care expenses	0	0	Released to Father			

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: ON

Per Child Information	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	0 - 100	0	0	0	Father	1458	Father	1458	Father
	0 - 100	0	0	0	Father	1458	Father	1458	Father

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3. DAVID SMITH V. CYNTHIA SMITH

22FL0136

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on July 29, 2026, to compel Respondent's required disclosures under Family Code sections 2104 and 2105.

To date, there is no proof of service of the RFO in the court's file. Respondent filed no Responsive Declaration.

TENTATIVE RULING #3: MATTER IS DROPPED FROM THE CALENDAR DUE TO THE LACK OF SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.